Setnayan — NPC / RA 10173 Compliance Documentation Pack

Date assembled: 2026-07-05 · **Revised 2026-10-22** — pack refreshed against the shipped code; start with `00_WHAT_CHANGED_2026-10-22.md`.
PIC: SETNAYAN SOFTWARE DEVELOPMENT SERVICE (sole proprietorship of Indalecio S. Casasola II · DTI Business Name No. 8297508)
DPO: Indalecio Sacdalan Casasola II · dpo@setnayan.com (published contact since 2026-09-22)
Status: NOT yet filed — filing scheduled January 2027 (owner, 2026-07-30). Three documents are ADOPTION-READY v1.1 awaiting the DPO's signature (01 Manual, 03 Designation + NPCRS, 04 Breach Policy); the rest are drafts. Every document is built to a compliant RA 10173 / NPC baseline ahead of counsel. For DPO (the owner) + PH counsel finalization, then filing/keepsake. **Not a substitute for legal review.**

What this pack is

The formal records a Personal Information Controller keeps on file and uses to register with the **National Privacy Commission (NPC)** under the Data Privacy Act of 2012 (RA 10173). This is your **keepsake + filing set**.

#	Document	Purpose
01	**Privacy Manual**	The flagship RA 10173 governance document (present to NPC on request) — 12 sections: scope, definitions, governance + security, principles, lifecycle, the 8 data-subject rights, consent, sub-processors/cross-border, breach, DPIA, complaints, versioning
02	**Records of Processing Activities (RoPA)**	Data-processing-systems inventory (**28 systems, DPS-01 → DPS-28**, revised 2026-10-22) + the NPC-registration threshold analysis
06	**DPIA — Face Vectors**	Full DPIA for biometric face matching (revised 2026-10-22)
07	**Compliance Facts Register**	Single source for the owner-supplied facts + sub-processor table (revised 2026-10-22)
08	**DPIA — Anti-Fraud, Trust & Integrity**	Full DPIA for identity clustering + auto-suspend (revised 2026-10-22)
—	**`00_WHAT_CHANGED_2026-10-22.md`**	One page: what changed, what the DPO signs, what is still open
—	**`Setnayan_Data_Privacy_Summary_2026-10-22.pdf`**	Printable 1-page summary: what we provide · what the website promises · how we comply
03	**DPO Designation + NPC Registration data sheet**	The owner's formal DPO appointment record (PIC = DPO) + the field-by-field data to complete NPC registration

04	**Data Breach Management Policy**	Per NPC Circular 16-03 — 72-hour rule, response team, notification, breach register
05	**DPIA Register + Person-Graph DPIA**	Impact-assessment register + one completed DPIA (person graph); flags what still needs one

The adoption-ready files are `01_Privacy_Manual_ADOPTED_2026-07-24.md`, `03_DPO_Designation_and_NPCRS_ADOPTED_2026-07-24.md`, `04_Data_Breach_Management_Policy_ADOPTED_2026-07-24.md` (the `_DRAFT_` twins are kept for lineage only). All carry the same and the "compliant baseline, not a substitute for legal review" footer.

How to actually file (this pack is the content, not the filing)

1. **Fill in the `[TO CONFIRM]` facts** below (one pass supplies them across all docs).
2. **You review & adopt as both PIC and DPO** — sign the designation + manual; set the effectivity dates. (PH counsel to review before publishing any policy text.)
3. **Register with the NPC online** via the **NPC Registration System (NPCRS)** at `register.privacy.gov.ph` — this registers the PIC, the DPO's contact details, and the Data Processing System(s). *(This online filing is the DPO/owner's action — I can't file on your behalf.)*
4. **Keep the adopted set as your accountability records** (the "keepsake"); update on the review cadence in the Manual.

Master list — facts you must supply (`[TO CONFIRM]`, 98 occurrences → these distinct items)

Business identity
- Registered / principal place of business address
- BIR TIN / Form 2303 number
- Existing NPC PIC + DPO registration number (after you file)

Scale (required registration fields)
- Total headcount / employees (and how many have access to personal data)
- Number of data subjects — customers, vendors, guests (approx.)
- Number of data subjects whose **sensitive** personal info you hold

DPO (the owner) details
- Contact email · mobile/landline · designation effectivity date · **the PIC = DPO conflict-of-interest note** (the proprietor also serves as DPO — record a short independence rationale; NPC generally prefers DPO autonomy from the controller, but this is commonly accepted for a 2-person sole proprietorship)

Data Breach Response Team
- Names for: Technical/Engineering Lead · Security/Ops Coordinator · Comms/Legal liaison (external PH counsel) · the 24/7 escalation phones + email · the DPO breach hotline number

Sub-processors (jurisdiction + executed DPA on file)
- [OK] Rebuilt 2026-10-22 from the code — see Privacy Manual § 8.2. **No DPA is signed with any processor** (task `t2-8`). PostHog removed; Suno not called; face matching is in-house; SendGrid does not exist.
- (!) **Suno is not in the Privacy Policy's sub-processor table** — add it (or confirm it processes no personal data)

Processing specifics
- Exact RSVP special-data fields (dietary/health/religious?) — decides whether the guest system is a formal sensitive-PII system
- Automated-decision inventory: the Anti-Fraud auto-suspend (DPS-12 / R-08) **is** a solely-automated decision with a significant effect (reversible); confirm the RA 10173 §16(c)/§34 contest/appeal path is documented
- Maya Business (V1.5 payment gateway) contract status
- Personnel controls: signed NDAs on file · privacy-training cadence · device/endpoint policy
- DPIA review + sign-off dates

Two things flagged for your attention

1. **Biometric face vectors likely need their own dedicated full DPIA.** The person-graph DPIA (doc 05, Part 2) is complete, but face-vector processing is sensitive (biometric) and is flagged as needing a *separate* HIGH-risk DPIA — not folded into the person-graph one. Worth doing before scaling that feature.
2. **Publish order:** the **Privacy Policy amendment** (person-graph, in `01_Contracts/`) and doc 05's person-graph DPIA should be **finalized with the DPO (owner) + PH counsel before the amendment goes public** — the features are live behind flags, but the public policy text publishes on sign-off.

Companion documents (outside this folder)

- `01_Contracts/Setnayan_Privacy_and_Security_Policy.md` — the binding public policy (now with the 2026-07-05 person-graph amendment)
- `03_Strategy/Compliance_Pack_PersonGraph_DRAFT_2026-07-05.md` — consent notices + the source person-graph DPIA
- `03_Strategy/Phase2_Counsel_Review_Brief_2026-07-05.md` + `Phase3_Minors_and_Legacy_Counsel_Brief_2026-07-05.md` — the two counsel briefs (for the DPO/owner + PH counsel)

Prepared to a compliant baseline ahead of counsel per the standing compliance-by-default rule. Finalize with Indalecio Sacdalan Casasola II (DPO) + PH counsel before filing/publishing.